

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

3. LAURA DAVIS V. DAVID DAVIS

PFL20080484

On July 14, 2026, Respondent filed a Request for Order (RFO) seeking spousal support and attorney's fees. He filed his Income and Expense Declaration concurrently therewith. All required documents were served by mail and personally served on Petitioner's attorney. However, because this is a post-judgment request, service was required to comply with Family Code § 215. He filed and served another Income and Expense Declaration on August 6th.

On August 31st, Respondent filed a Declaration of Callie B. Cambridge. It was electronically served the same day.

Despite the defect in service, Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on September 3, 2026.

Respondent filed and served his reply declaration on September 9th.

Because Petitioner filed her responsive declaration, and because she did not object to the faulty service, the court finds good cause to reach this matter on its merits.

Because this is a post-judgment request to amend spousal support, the court is required to take evidence on and address the Family Code § 4320 factors. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975).

Here, the court does find that Respondent has sufficiently established a change in circumstances given his recent retirement and corresponding drop in income. Accordingly, the parties are ordered to appear to select trial and mandatory settlement conference dates.

The request for attorney's fees is denied due to Respondent's failure to specify the amount of fees sought.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.

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THE REQUEST FOR ATTORNEY'S FEES IS DENIED DUE TO RESPONDENT'S FAILURE TO SPECIFY THE AMOUNT OF FEES SOUGHT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. COURTNEY GUBERT V. CASEY GUBERT

PFL20200248

On July 30, 2026, Respondent filed an Ex Parte Application and Declaration for Orders and Notice requesting custody and visitation orders. The court denied the requests ex parte but referred the parties to an emergency set Child Custody Recommending Counseling (CCRC) appointment and admonished Petitioner that monetary sanctions may be imposed for each exchange missed. A review hearing was set for the present date.

On August 27, 2026, Petitioner also filed an ex parte application seeking custody and visitation orders. The court declined to make any changes to custody orders but appointed Minor's Counsel and affirmed the review hearing date.

The parties attended CCRC on August 18th and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on September 3, 2026.

Petitioner filed a Responsive Declaration to Request for Order on September 9th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made September 3rd the last day for filing Petitioner's responsive declaration. As such, the court has not read or considered it.

Respondent filed and served a supplemental declaration on September 9th. The court deems this to be a reply declaration and it is therefore, timely.

Minor's Counsel has not filed a declaration with the court.

Respondent is requesting temporary sole legal and physical custody of the minors. He requests an order for Petitioner to undergo a mental health evaluation with a licensed mental health provider and he asks that Petitioner's parenting time be supervised. He asks that the court adopt the recommendations of CCRC with specified modifications as set forth in his supplemental declaration.

Petitioner opposes the requests and instead asks that she be granted sole legal and sole physical custody of the children. She asks that the children be allowed to continue their current mental health treatment and participate in reunification therapy with